

25NNCV06840 25NNCV06840

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-06-26

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Case Number: 25NNCV06840 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 12

Date: June 26, 2026

Case No: 25NNCV06840 Trial Date: Not yet set

Case Name: Colmenares v. Mercado, et al.

MOTION TO SET ASIDE DEFAULT

[CCP § 473 subd. (b)]

Moving Party: Defendant, Christopher David Mercado

Responding Party: Plaintiff, Juan Ramon Colmenares [Unopposed]

RELIEF REQUESTED:

Vacate the default judgment entered against Defendant Christopher David Mercado

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle Negligence

2) General Negligence

SUMMARY OF FACTS:

This action arises from an alleged motor vehicle accident. Juan Ramon Colmenares ("Plaintiff") alleges that on May 1, 2025 near 2000 Market Place Drive in Monterey Park, CA 91755, Christopher David Mercado ("Mercado"), Pedro Hernandez, Hispanic Urban Center, and Rosie Rosales (collectively, "Defendants") negligently operated a motor vehicle causing damages to Plaintiff.

ANALYSIS:

CCP section 473 subdivision (b) provides for both discretionary and mandatory relief from a judgment, dismissal, and/or order or other proceeding taken against a party through his or her mistake, inadvertence, surprise, or excusable neglect. (CCP § 473, subd. (b) [mandatory relief more narrowly targeted to defaults, default judgments, and dismissals]; *Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 302.)

"A motion for relief under section 473 is addressed to the sound discretion of the trial court and an appellate court will not interfere unless there is a clear showing of an abuse. [Citation.] The statute is remedial and should be liberally applied to carry out the policy of permitting trial on the merits, but the moving party has the burden of showing good cause. [Citations.]" (*David v. Thayer* (1980) 133 Cal.App.3d 892, 904-905.)

The discretionary provision of section 473, subdivision (b), states that "[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (CCP, § 473, subd. (b).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (CCP, § 473, subd. (b).)

Mercado brings this motion to vacate the default judgment entered against him on February 24, 2026. On April 3, 2026, the parties filed a stipulation to set aside the default. (4/3/2026 Stipulation.) The Court signed the stipulation and entered an order setting aside the default and ordering that Mercado's Answer filed on March 3, 2026 is accepted. (4/3/2026 Stipulation.)

Accordingly, the motion is MOOT.

RULING:

Defendant Christopher David Mercado's Motion to Set Aside Default is MOOT.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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